



RISE & SHINE ABA LLC

Empowering children to reach their full potential

OIG / SAM / OMIG EXCLUSION SELF-ATTESTATION

Federal Healthcare Programs Eligibility Confirmation · Document v1.0 · Effective May 2026

Required at hire and annually thereafter for all employees, contractors, and vendors

1. Why This Attestation Is Required

Federal and New York State law prohibit healthcare providers from billing federal healthcare programs (Medicare, Medicaid, TRICARE, and others) for services delivered, ordered, or supervised by individuals who are excluded from participation in those programs. Rise & Shine ABA participates in Medicaid (New York Medicaid) and is contracted with multiple managed care plans that include federal funds. Employing or contracting with an excluded individual — even unknowingly — exposes the Company to civil monetary penalties, claim recoupments, and potential exclusion.

To meet our compliance obligations, every employee, contractor, and vendor must self-attest that they are not excluded, debarred, or sanctioned, and the Company verifies this against three primary databases:

- **OIG LEIE** — U.S. Department of Health and Human Services Office of Inspector General, List of Excluded Individuals/Entities (exclusions.oig.hhs.gov)
- **SAM** — System for Award Management, federal exclusions database (sam.gov)
- **OMIG** — New York State Office of the Medicaid Inspector General, Restricted, Terminated, or Excluded Providers list (omig.ny.gov)

These checks are performed at hire, monthly thereafter for active personnel, and at each contract renewal.

2. Self-Attestation

By signing below, I attest under penalty of perjury that all of the following statements are true and accurate as of the date of my signature:

2.1 No Current Exclusion or Debarment

I am not currently:

- Excluded, suspended, debarred, or otherwise ineligible to participate in any federal healthcare program (including Medicare, Medicaid, TRICARE, CHAMPUS, the federal employees health benefit program, or any other federal healthcare program);

- Listed on the OIG List of Excluded Individuals/Entities (LEIE);
- Listed on the General Services Administration's System for Award Management (SAM) exclusions database;
- Listed on the New York State OMIG list of Restricted, Terminated, or Excluded Providers; or
- Excluded, suspended, debarred, or sanctioned by any other federal, state, or professional licensing body relevant to my role at Rise & Shine ABA.

2.2 No Prior Exclusion

I have never been:

- Convicted of a criminal offense related to the delivery of an item or service under any federal or state healthcare program;
- Convicted of a criminal offense relating to the unlawful manufacture, distribution, prescription, or dispensing of a controlled substance;
- Convicted of a felony involving fraud, theft, embezzlement, breach of fiduciary responsibility, or other financial misconduct;
- Convicted of a felony involving the abuse, neglect, or financial exploitation of a child, an elder, or a person with a disability;
- The subject of any final adverse action by a state licensing board, professional certification body (including the BACB), or federal/state regulatory agency;
- Required to repay any federal or state healthcare program as a result of overpayment, fraud, or improper billing.

If I have ever been the subject of any of the above, I have disclosed it in writing to Rise & Shine ABA on the disclosure page that follows this Attestation.

2.3 No Pending Investigation

To the best of my knowledge, I am not currently the subject of any pending investigation, indictment, charge, civil enforcement action, or licensing-board proceeding relating to any of the matters listed in §2.1 or §2.2. If such an action arises during my employment or engagement with Rise & Shine ABA, I will report it to the Compliance Officer within five (5) business days.

2.4 No Conflict of Interest

I am not a current employee, contractor, or agent of any payer with which Rise & Shine ABA does business in a capacity that would create a conflict of interest with my role. I have disclosed any potential conflicts on the disclosure page that follows this Attestation.

3. Continuing Obligation to Notify

If at any time during my employment or engagement with Rise & Shine ABA I become excluded, suspended, debarred, sanctioned, indicted, charged, or convicted of any matter described in §2 above —

or learn that any such action is being considered against me — **I will notify the Compliance Officer in writing within twenty-four (24) hours.**

I understand that failure to give prompt notice may itself be grounds for immediate termination, in addition to any consequences arising from the underlying event.

4. Verification & Authorization

I authorize Rise & Shine ABA to verify the accuracy of this Attestation by checking the OIG LEIE, SAM, OMIG, and any other applicable databases or sources, and to perform additional checks at any time during my employment or engagement. I understand that monthly OIG/SAM/OMIG checks are a standard compliance practice and that my name will be screened on a recurring basis for as long as I am affiliated with the Company.

5. Consequences of False Attestation

Consequences of False or Inaccurate Attestation

Knowingly providing false or incomplete information on this Attestation is grounds for immediate termination of employment or contract, voids any agreement with Rise & Shine ABA from inception, may result in civil legal action by the Company, and may carry separate civil and criminal liability under federal and state false-claims, fraud, and healthcare integrity statutes.

6. Disclosure Page

If you answered "yes" to anything in §2 above, or if there is any matter you believe Rise & Shine ABA should be aware of in evaluating your eligibility, describe it fully in the space below. Use a separate sheet if more space is needed.

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- ☐ I have nothing to disclose.
- ☐ I have disclosed all relevant matters above (or on attached pages).

7. Signatures

I attest under penalty of perjury that the statements above are true and accurate to the best of my knowledge.

EMPLOYEE / CONTRACTOR

Printed Full Legal Name	Date of Birth
Position / Title	RBT/BCBA Cert # (if applicable)
Signature	Date Signed

COMPLIANCE OFFICER VERIFICATION

Check Performed	Date	Result (Clear / Hit)
OIG LEIE		
SAM.gov		
NYS OMIG		
State Licensing Board		
BACB Certificant Registry		

Compliance Officer Printed Name & Title	Date Verified
Compliance Officer Signature	